initiated removal proceedings against him. At those proceedings, the Government charged Lau as an applicant for admission who was inadmissible for having been convicted of a crime involving moral turpitude. Lau argued that he was a lawful permanent resident already admitted and subject to removal only on deportability grounds. *Muk Choi Lau* v. *Bondi*, 130 F. 4th 42, 44. The Immigration Judge found Lau removable as charged, and the Board of Immigration Appeals affirmed. Lau sought review in the Second Circuit, which vacated the removal order. It concluded that Lau should have been regarded as already admitted upon arrival unless the border officer had "clear and convincing" evidence that Lau had committed the crime, which it held that the officer lacked. *Id.*, at 46. Without that evidence, the court concluded, border officers must regard lawful permanent residents as already admitted, which precludes removal on inadmissibility grounds. The court remanded to the agency without prejudice to the Government's ability to charge Lau with deportability. Because the Second Circuit's decision conflicted with those of the Fifth and Ninth Circuits, the Court granted certiorari.

Held: The Immigration and Nationality Act (INA) does not require a border officer to have clear and convincing evidence that a lawful permanent resident has committed a crime involving moral turpitude before deeming the resident an applicant for admission. Pp. 8–12.

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(a) Removing a lawful permanent resident on a charge of inadmissibility involves two steps: at step one, only commission of the crime is required to show that the alien could be regarded as seeking to be admitted; at step two, conviction or admission is required to show that the alien seeking to be admitted is inadmissible. Lau was correctly charged with inadmissibility. At step one, the Government regarded him as an alien seeking admission because he had committed a crime involving moral turpitude before attempting to reenter the country. At step two, he was inadmissible and therefore removable because he had been convicted of a crime involving moral turpitude.

The Second Circuit resisted this straightforward analysis based on a conclusion that the Government had the burden "to prove by clear and convincing evidence that [Lau] actually committed the crime in question *at the time of reentry*." 130 F. 4th, at 47 (emphasis added). The statute imposes similar burdens in other situations, but nothing in the INA says that the Government has the burden to establish by clear and convincing evidence that the alien is an applicant for admission. The Second Circuit derived its clear-and-convincing-evidence requirement not from the statutory text, but from inapposite Board of Immigration Appeals precedent. Correct or not, the Board imposes this burden on the Government only "*at the time of the removal hearing*," not at the bor-

Syllabus

der. *Matter of Valenzuela-Felix*, 26 I. & N. Dec. 53, 57, 64. Here, the Government satisfied its burden at the hearing: Lau's guilty plea was clear and convincing evidence that, before he attempted to reenter the country, he had committed the crime in question. The Court declines to read into the INA an additional clear-and-convincing-evidence burden on border officers entrusted with making "quick judgments on the spot" when that burden is nowhere in the statute or even Board precedent. *Luz Munoz* v. *Holder*, 755 F. 3d 366, 371. Pp. 8–10.

(b) Lau's remaining arguments lack merit. Lau argues that the same clear-and-convincing-evidence standard that the Board applies during the removal proceeding should apply to the border officers determining that an applicant is seeking an admission. But nothing in the INA supports that argument.

Lau also suggests that a lawful permanent resident may be regarded as seeking admission only after being *convicted* of a crime involving moral turpitude, citing this Court's footnoted dictum in *Vartelas* v. *Holder*, 566 U. S. 257, 275, n. 11. A straightforward reading of the statutory text contradicts Lau's interpretation. Section 1101(a)(13)(C)(v) says that a lawful permanent resident may "be regarded as seeking an admission" if he "has committed" a crime identified in § 1182(a)(2), which includes "a crime involving moral turpitude." § 1182(a)(2)(A)(i)(I). Under § 1101(a)(13)(C)(v), the Government may regard a lawful permanent resident as seeking admission as soon as he "*committed* a" crime involving moral turpitude "even if (as in [Lau's] case) the *conviction* occurred" later. *Barton* v. *Barr*, 590 U. S. 222, 232. Section 1101(a)(13)(C)(v) incorporates by reference only the crimes § 1182(a)(2) identifies, not its requirement of conviction. Pp. 10–12.

(c) The Court does not decide whether Lau's crime was one involving moral turpitude, but remands the case to the Second Circuit for further proceedings. P. 12.

130 F. 4th 42, vacated and remanded.

Page Proof Pending Publication

THOMAS, J., delivered the opinion of the Court, in which ROBERTS, C. J., and ALITO, GORSUCH, KAVANAUGH, and BARRETT, JJ., joined. JACKSON, J., filed a dissenting opinion, in which SOTOMAYOR and KAGAN, JJ., joined, *post*, p. 12.

Sopan Joshi argued the cause for petitioner. With him on the briefs were *Solicitor General Sauer*, *Assistant Attorney General Shumate*, *Deputy Solicitor General Gannon*, and *Melissa L. Neiman-Kelting* and *M. Jocelyn Lopez Wright.*

Shay Dvoretzky argued the cause for respondent. With him on the brief were *Parker Rider-Longmaid*, *Hanaa Khan*, *Raza Rasheed*, and *Mike Pan Gao*.*

JUSTICE THOMAS delivered the opinion of the Court.

Respondent Muk Choi Lau, a Chinese citizen, became a lawful permanent resident in 2007. New Jersey charged him with a crime in 2012. He then temporarily left the United States. Ordinarily, a lawful permanent resident who arrives in the United States after a temporary absence does not have to apply for admission because he is regarded as already admitted. 8 U. S. C. § 1101(a)(13)(C). If he has committed certain crimes, however, the Government may regard him as not yet admitted. § 1101(a)(13)(C)(v). Because of Lau's pending charge for a crime, a border officer declined to regard Lau as admitted upon his return and did not admit him at the border. Instead, the officer paroled him pending the resolution of his criminal case, meaning that he was allowed to physically enter the country without being formally admitted. After Lau pleaded guilty to the New Jersey charge, the Government initiated removal proceedings and secured a removal order based on his conviction. The Board of Immigration Appeals affirmed.

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The United States Court of Appeals for the Second Circuit vacated the removal order. It concluded that Lau should have been regarded as already admitted upon arrival unless the border officer had "clear and convincing" evidence that Lau had committed the crime, which it held that the officer lacked. *Muk Choi Lau* v. *Bondi*, 130 F. 4th 42, 46 (2025). Because the Immigration and Nationality Act (INA) does not

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**Christopher J. Hajec* filed a brief for the Federation for American Immigration Reform as *amicus curiae* urging reversal.

Briefs of *amici curiae* urging affirmance were filed for the American Immigration Lawyers Association et al. by *Lauren M. Blas*; for the Asian American Legal Defense and Education Fund et al. by *Alan E. Schoenfeld*; and for Immigration Law Professors by *Carolyn F. Corwin.*